

SENATE No. 930

The Commonwealth of Massachusetts

PRESENTED BY:

James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish comprehensive rights and career advancement for contingent faculty in public higher education.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/18/2025</i>

SENATE No. 930

By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 930) of James B. Eldridge for legislation to establish compensation and employment standards for contingent faculty in public higher education. Higher Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish comprehensive rights and career advancement for contingent faculty in public higher education.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 15A of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by inserting after the definition of "Community college" the
3 following definitions:-

4 "Career advancement tier", a defined classification level for contingent faculty members
5 that establishes specific rights, responsibilities and compensation rates based on teaching
6 experience and institutional service.

7 "Contingent faculty member", an instructor at a public institution of higher education
8 who: (i) teaches at least 1 course per academic year; (ii) is compensated on a per-course basis;
9 and (iii) is not in a tenure-track position.

10 "Day division", credit-bearing courses offered as part of regular academic programs
11 during standard operational hours.

"Division of continuing education", credit and non-credit courses offered through continuing education, evening, or extended learning programs.

"Full-time equivalent load", the standard course load assigned to full-time faculty members at the institution.

"Teaching unit", a standard 3-credit course or its equivalent as determined by the board.

SECTION 2. Said chapter 15A is hereby further amended by striking out sections 9 and 15 and inserting in place thereof the following sections:-

Section 9A. COMPENSATION AND EMPLOYMENT STANDARDS

(a) The board shall establish employment standards for contingent faculty members including:

(1) Minimum compensation requirements:

(i) Base per-course rates no less than the pro-rated equivalent of full-time faculty compensation;

(ii) Equal pay rates between day division and continuing education courses;

(iii) Regular cost-of-living adjustments;

(iv) Additional compensation for departmental service and committees;

(v) Payment for course preparation when classes are canceled within 30 days of start date.

(2) Employment security provisions:

(i) Standard two-year contracts after 4 successful teaching semesters;

(ii) Course assignment notification at least 45 days before term start;

(iii) Compensation of 25 percent of course rate for late cancellations;

(iv) Protection from arbitrary non-renewal;

(v) Right of first refusal for previously taught courses.

(3) Professional support including:

(i) Dedicated office space;

(ii) Institution-provided computer equipment;

(iii) Access to departmental resources;

(iv) Professional development funding;

(v) Research and conference support;

(vi) Library and technology access.

Section 9B. CAREER ADVANCEMENT AND INSTITUTIONAL INTEGRATION

(a) Each institution shall:

(1) Establish a career advancement framework that:

(i) Creates 3 tiers of contingent faculty positions with increasing job security,
compensation and benefits;

(ii) Provides clear advancement criteria;

49 (iii) Includes teaching excellence and institutional service;

50 (iv) Ensures fairness and transparency.

51 (2) Provide internal advancement opportunities including:

52 (i) Priority consideration for full-time positions;

53 (ii) Credit for years of service;

54 (iii) Recognition of institutional knowledge;

55 (iv) Support for professional development.

56 (3) Ensure departmental integration through:

57 (i) Participation in governance;

58 (ii) Voting rights on departmental matters;

59 (iii) Inclusion in faculty meetings;

60 (iv) Access to grants and research support.

61 Section 15. CONTINUING EDUCATION REFORM

62 (a) All institutions shall:

63 (1) Eliminate pay disparities between day and continuing education divisions within 2

64 years;

65 (2) Place all new contingent faculty hires in day division unit;

66 (3) Provide equal benefits and advancement opportunities regardless of division;

(4) Maintain consistent evaluation and advancement procedures.

SECTION 3. Chapter 32A of the General Laws is hereby amended by inserting after section 2B the following sections:-

Section 2C. HEALTH INSURANCE ACCESS

(a) Contingent faculty members shall be eligible for group insurance benefits if they:

(1) Teach courses equivalent to 25 per cent or more of a full-time load; or

(2) Have taught at least 2 courses per year for the previous 2 years.

(b) Eligible faculty shall receive:

(1) Pro-rated premium contributions based on teaching load;

(2) Access to all standard plan options;

(3) Continuation of coverage between semesters if maintaining a regular teaching schedule.

Section 2D. RETIREMENT BENEFITS

(a) The state retirement board shall:

(1) Establish mechanisms for contingent faculty participation in Social Security;

(2) Maintain OBRA 1990/457b eligibility;

(3) Require institutional matching for retirement contributions;

(4) Provide retirement planning support;

(5) Include part-time faculty representation in benefit decisions.

SECTION 4. Chapter 149 of the General Laws is hereby amended by inserting after section 148C the following sections:-

Section 148D. EMPLOYMENT RECORDS AND TRANSPARENCY

(a) Institutions shall maintain records including:

(1) Courses taught and compensation;

(2) Career advancement tier status;

(3) Benefits eligibility;

(4) Professional development participation;

(5) Evaluation results.

(b) Faculty members shall receive written notice of:

(1) Course assignments and compensation;

(2) Benefits eligibility and options;

(3) Advancement opportunities;

(4) Evaluation criteria and results.

Section 148E. PROFESSIONAL DEVELOPMENT AND SUPPORT

(a) Institutions shall provide:

(1) Annual professional development funding;

- 103 (2) Access to research grants;
- 104 (3) Conference attendance support;
- 105 (4) Technology and resource access;
- 106 (5) Mentoring opportunities.

107 SECTION 5. IMPLEMENTATION AND FUNDING

108 (a) There shall be established the Contingent Faculty Career Advancement Fund.

109 (b) The fund shall receive:

- 110 (1) Annual appropriations;
- 111 (2) Institutional contributions;
- 112 (3) Grant funding;
- 113 (4) Investment returns.

114 (c) The board shall use the fund to support:

- 115 (1) Implementation of career frameworks;
- 116 (2) Professional development programs;
- 117 (3) Position conversion to full-time status;
- 118 (4) Benefits expansion;
- 119 (5) Resource provision.

120 SECTION 6. OVERSIGHT AND ENFORCEMENT

121 (a) The board shall:

122 (1) Promulgate detailed regulations;

123 (2) Monitor institutional compliance;

124 (3) Investigate violations;

125 (4) Issue corrective orders;

126 (5) Impose penalties for non-compliance.

127 (b) Faculty members may:

128 (1) File complaints with the board;

129 (2) Appeal adverse decisions;

130 (3) Seek enforcement through civil action;

131 (4) Receive protection from retaliation.

132 SECTION 7. The board shall promulgate regulations to implement this act no later than
133 January 1, 2026.

134 SECTION 8. Sections 1 through 6 shall take effect on July 1, 2026.

135 SECTION 9. Section 7 shall take effect upon passage.